

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."

(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- **The court encourages remote appearances to save time, reduce costs, and increase public safety.** Go to [Check-In Results - Orange County Superior Court](#) and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you **must** provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If **everyone** submits to the tentative ruling, call the clerk at **657-622-5231**. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 7/24/2026 10:00 AM

#	Case Name	Tentative
1	Burke vs. City of Newport Beach 30-2024- 01436236-CU- PA-CJC	Motion for Leave to File Cross-Complaint Defendant City of Newport Beach's motion for leave to file a cross-complaint is GRANTED. There is no prejudice, as trial is several months away. Defendant is ORDERED to file the cross-complaint within 5 days. Clerk to give notice.
2	Phillips vs. Kirschbaum 30-2025- 01495763-CU- BT-CJC	Motion for Leave to File Amended Cross-Complaint Cross-Complainants April 2021 LLC and Stephen Vu's motion for leave to file a First Amended Cross-Complaint ("FAXC") is GRANTED.

		There is no prejudice, as trial has not yet been scheduled. Cross-complainants are ORDERED to file the FAXC within 5 days. Clerk to give notice.
3	Hauzer vs. Progressive Direct Insurance Company 30-2025-01487777-CU-BC-CJC	Motion to Deem Facts Admitted Off calendar. Reclassified to limited civil.
4	Providence Capital Funding, Inc. vs. Lozamira Inc. 30-2025-01484900-CU-BC-CJC	Motion to Stay Enforcement of Abstract of Judgment Defendants' Motion to Stay Enforcement of Abstract of Judgment is DENIED. Defendants Rosa Lozano, MA. E. Miramontes Gamboa, and Gerardo Lozano, Jr. are currently defaulted and cannot take affirmative action in the case until default is set aside. (See <i>Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.</i> (1984) 155 Cal.App.3d 381, 385.) Clerk to give notice.
5	Lugo vs. Cityside Networks, LLC 30-2025-01496289-CU-OE-CJC	Motion for Preliminary Approval of Class Action Settlement Off calendar. Transferred to complex civil.
6	State Bar of California vs. Bosse 30-2023-01339321-CU-PT-CJC	Motion to Terminate Jurisdiction Petitioner State Bar of California's unopposed Motion to Terminate the Court's Jurisdiction over Gregory Bosse's Law Practice is GRANTED. (See Bus. & Prof. Code, § 6190.6.) The State Bar is authorized to destroy any remaining client files and property in its possession that are not original wills or trust documents. The case is dismissed. Clerk to give notice.
7	Blumberg vs. Stroma Medical Corporation	Motion to Tax Costs or for Revising Calculation of Post-Judgment Interest Continued at parties' request.

	30-2020-01172565-CU-BC-CJC	
8	Jonjic vs. Volkswagen Group of America, Inc. 30-2025-01502337-CU-BC-CJC	Motion for Attorney Fees Off calendar. Case dismissed.
9	Nguyen vs. JJD Development LLC 30-2023-01321270-CU-BC-CJC	Motion to Fix Attorney Fees Defendants J.J.D. Development, LLC; Andrew Chu; and Sunny Realty & Management, Inc.'s Motion for Attorney Fees is GRANTED in the reduced amount of \$50,462.50. Defendants were the prevailing parties. (ROA 139.) Defendants are entitled to attorney fees pursuant to the lease which provides for fees in any "action or proceeding involving the Premises whether founded in tort, contract or equity" (Rothman Decl., Ex. A, § 31.) The clause is broad and, thus, applies to noncontract claims as well. (See <i>Reyes v. Beneficial State Bank</i> (2022) 76 Cal.App.5th 596, 618.) After careful consideration of all papers and its own files and knowledge of fees in the community, the Court finds the hourly rate of \$550 per hour to be within the reasonable range. The Court reduces the claimed fees by 8.5 hours for work related to the writ which is not part of this proceeding. Defendants' citation to <i>Rey v. Madera Unified School Dist.</i> (2012) 203 Cal.App.4th 1223, 1243, does not support their contention they may recover fees for separate proceedings. After review of the billing records attached, the Court finds all other entries to be reasonably incurred and not excessive. Plaintiff's generalized requests for reductions are denied. Therefore, the Court, in its discretion, finds \$50,462.50 for 91.75 hours to be reasonable. Clerk to give notice.
10	Moran vs. General Motors, LLC 30-2024-01396983-CU-BC-CJC	Motion for Attorney Fees Continued to 8/7/2026.

11	Collison vs. KRC Santa Margarita, LLC 30-2025-01530542-CU-PO-CJC	Demurrer to First Amended Complaint Defendant KRC Santa Margarita, LLC's (KRC) Demurrer to Plaintiff's First Amended Complaint (FAC) is OVERRULED. The FAC is not uncertain. At this stage, the allegations are sufficient to put KRC on notice of the claims against it. Any additional factual detail may be obtained through discovery. The FAC alleges Defendants had repeated notice that Plaintiff was suffering from dementia, impaired judgment, worsening mobility, and an escalating risk of falls. (FAC, ¶¶ 13-16.) Despite repeated falls while inadequately supervised, repeated hospitalizations, repeated therapy recommendations, and repeated documentation demonstrating Plaintiff's deteriorating condition, Defendants failed to increase supervision, failed to modify Plaintiff's care plans, failed to implement appropriate fall interventions, and continued to expose Plaintiff to the same known dangers. (FAC, ¶¶ 17-63, 69-90). The FAC further alleges KRC's and Kisco's officers, directors, administrators, executive directors, regional managers, and/or managing agents knew Plaintiff had suffered repeated falls, repeated hospitalizations, worsening cognition, worsening mobility, and increasing dependency. (FAC, ¶ 66.) Despite that knowledge, KRC's and Kisco's officers, directors, administrators, executive directors, regional managers, and/or managing agents knowingly ratified and approved the dangerous custodial practices by failing to take corrective measures. (FAC, ¶ 71.) These allegations are sufficient to plead elder abuse. (See <i>Delaney v. Baker</i> (1999) 20 Cal.4th 23, 31-33; <i>White v. Ultramar, Inc.</i> (1999) 21 Cal.4th 563, 572-577.) Defendants are ORDERED to file an answer within 10 days. Clerk to give notice.
12	Paz vs. Clarke Law Medical Corp. 30-2025-01507092-CU-WT-CJC	Demurrer to Complaint Defendant Clarke Law Medical Corp.'s Demurrer to Plaintiff Mireya Paz's Complaint is CONTINUED to 8/14/2026 at 10:00 AM. Defendant's counsel filed a declaration stating Defendant is in the process of reviewing Plaintiff's proposed First Amended Complaint (FAC) and the parties are considering

		informal resolution of the matter. (ROA 48; Turner Decl., ¶¶ 2-5.) Plaintiff is ORDERED to file a joint stipulation regarding the filing of a FAC should the parties so stipulate no later than nine (9) court days before the hearing. Otherwise, Defendant is ORDERED to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will assume the issues have been resolved and take the demurrer off calendar. Moving Defendant to give notice.
13	Jin vs. PCH Auto LLC 30-2024-01437254-CU-BC-CJC	Motion for Summary Judgment/Adjudication The Motion for Summary Judgment/Adjudication by Defendant Mercedes-Benz Financial Services USA LLC as to the First Amended Complaint (FAC) of Plaintiffs Shengmin Jin and Skye Jin is GRANTED. Defendant's request for judicial notice is DENIED as unnecessary as to the operative complaint because the Court may consider the pleadings in this case. As to the Electronic Certificate of Title and Online Vehicle Reports, the request is GRANTED because the official DMV records including the registered and legal owners of the subject vehicle and lien and title information "are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code, § 452(h).) Here, Defendant has shown the documents reflect official DMV records and Plaintiffs do not demonstrate a genuine dispute as to the existence or accuracy of the DMV records. Defendant's objections to the declaration of Plaintiff Shengmin Jin (ROA 186) are OVERRULED. Request for Continuance Plaintiffs' request a continuance of the hearing to conduct further discovery under Code of Civil Procedure section 437c, subdivision (h) is DENIED. Plaintiffs' counsel does not submit a declaration explaining why they failed to conduct the necessary discovery since filing the complaint in November 2024, how and when they intend to conduct such discovery, or what they anticipate the discovery may reveal. Rather,

	Plaintiffs rely on the declaration of Plaintiff Shengmin Jin, who states he is informed discovery has not been conducted regarding (1) who made payments on the vehicle loan between December 2023 and June 2024, (2) payment records or communications between the Defendants, or (3) the deposition of Malek Hanna to determine how the dealership obtained the vehicle or whether the true owner authorized the sale. (¶¶ 27, 32, 33.) Plaintiffs have not shown they have initiated such discovery to date or how discovery would assist their legal claims. (See <i>Braganza v. Albertson’s LLC</i> (2021) 67 Cal.App.5th 144, 152; <i>Menges v. Department of Transportation</i> (2020) 59 Cal.App.5th 13, 25.) Summary of Undisputed Facts Defendant Malex Housing, LLC (Malex) purchased the subject vehicle from Mercedes-Benz of West Covina on 6/21/22 pursuant to a Retail Installment Sale Contract (“RISC”). (Undisputed Material Fact [UMF] 1.) The RISC provided the vehicle could not be sold or transferred without Defendant’s permission. (UMF 4.) Moving Defendant was assigned the contract by the original dealer. (UMF 6.) Unknown to Defendant, at some point the subject vehicle came into possession of Defendant PCH Autos LLC, which Plaintiffs paid to purchase the vehicle. (UMFs 7-8.) The Dealership never provided Plaintiffs with title to the vehicle. (UMF 15.) Defendant asserts it never knew about or authorized the second sale from the Defendant Dealership to Plaintiffs. (UMFs 9-14.) Plaintiffs dispute these facts based on Plaintiff Jin’s declaration at paragraphs 27-33, which states Plaintiffs believe someone else was making payments to Defendant on the vehicle between December 2023 and June 2024 because Defendant’s loan did not go into default until six months after Plaintiffs paid the Defendant Dealership for the vehicle. Plaintiff believes Defendant Dealership may have been making loan payments to Defendant after Plaintiffs purchased the vehicle, but have not conducted discovery to support this assertion. (¶¶ 31, 32.) Merits Defendant claims it maintains an undisturbed perfected lienholder interest in the vehicle, it is the vehicle’s legal owner, and it never knew about or authorized the Dealership’s sale of the vehicle. Defendant contends that
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		under California's Full Title Doctrine (Veh. Code, §§ 6300-6303), its security interest survived the purported sale from the Dealership to Plaintiffs. Moving Defendant contends that if anyone is liable, it is the Dealership, which is responsible for ensuring title transfer under Vehicle Code section 5753. Vehicle Code section 6301 states in part, "When the secured party, his or her successor, or his or her assignee, has deposited, either physically or by electronic transmission pursuant to Section 1801.1, with the department a properly endorsed certificate of ownership showing the secured party as legal owner or an application in usual form for an original registration, together with an application for registration of the secured party as legal owner, the deposit constitutes perfection of the security interest and the rights of all persons in the vehicle shall be subject to the provisions of the Uniform Commercial Code...." "The general rule is that the seller of property can transfer to the buyer no better title than he has himself, and if at the time of the transfer he has no title, the purchaser, although buying in good faith and for full value obtains no title." (<i>Siebenhauer v. Bank of Cal. Nat. Ass'n</i> (1930) 211 Cal. 239, 241.) "The full title doctrine operates to defeat the claims of holders of an unlisted security interest as against the claims of good faith purchasers" because, "it should normally be impossible for a seller to present a buyer with a certificate of ownership which shows no security interest at a time when the DMV records show one." (<i>Suburban Motors, Inc. v. State Farm Mut. Auto. Ins. Co.</i> (1990) 218 Cal.App.3d 1354, 1362 [cleaned up].) "Because this 'full title' system requires all security interests to be listed on the statutory certificate of ownership (see Veh. Code, §§ 370, 4451, 4453), a purchaser may rely on the certificate and is not expected to check a centralized set of records to determine whether a security interest has been recorded." (<i>Ibid.</i>) "Vehicle Code section 6300 provides the exclusive method for perfecting a security interest in a vehicle not constituting inventory...." (<i>Quartz of Southern California, Inc. v. Mullen Bros., Inc.</i> (2007) 151 Cal.App.4th 901, 908.) "The provisions of the Uniform Commercial Code do not come into play to determine the rights of competing parties until the security interest is perfected under the Vehicle Code." (<i>Ibid.</i>)
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		In opposition, Plaintiffs do not deny Defendant remains the lienholder of record and Defendant Malex never paid off the loan under the original RISC. (UMFs 18, 21.) The title was never transferred to Plaintiffs' name with the DMV. (UMF 22.) Rather, Plaintiffs argue they purchased the vehicle in good faith without any knowledge of Defendant Malex's ownership or moving Defendant's security interest in the vehicle. Plaintiffs did not know the Dealership lacked legal authority to sell the vehicle. Plaintiffs contend Defendant has not met its burden to demonstrate its perfected security interest because the Court cannot take judicial notice of the Electronic Certificate of Title and Online Vehicle Reports. The court disagrees but even so, Defendant presents the declaration of its Collections Group Leader who declares, "MBFS received by assignment from the Dealer the Contract, and pursuant to its terms, MBFS' lienholder and legal ownership interest in the Mercedes-Benz that was perfected with the California Department of Motor Vehicles ("DMV") on July 6, 2022." (¶¶10-15.) Defendant has met its burden of demonstrating it holds title to the vehicle as reflected in the title certificate. Plaintiffs assert there is a dispute as to whether (1) Defendant consented to or ratified the sale by accepting payments from the Dealership or another third party for six months after Plaintiffs' purchase, (2) Malex authorized the Dealership to sell the vehicle, (3) Plaintiffs are bona fide purchasers, and (4) Defendant had actual or constructive notice of the sale. (Opp., p. 7.) The only legal authority cited by Plaintiffs in support of their arguments is Civil Code section 2026, which provides that a "factor" is an agent employed by another to sell property and who is authorized to conduct a sale. (Civ. Code, §§ 2026-2030.) Plaintiffs assert the Dealership <i>may have</i> been acting as Malex's agent to conduct a binding sale, with constructive knowledge of moving Defendant. However, Plaintiffs do not cite evidence in support of this theory other than their assertion Defendant did not place the loan in default until six months after Plaintiffs' purported purchase of the vehicle. Defendant has shown it holds a valid security interest in the vehicle listed on the title certificate. Plaintiffs do not dispute this but assert, without supporting evidence, Defendant Malex <i>may have</i> consented to the sale of the vehicle despite the terms of Malex's RISC with moving
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		Defendant which prohibited Malex's sale of the vehicle without Defendant's consent. Plaintiffs further speculate Defendant <i>may have</i> ratified the sale by continuing to accept payment, possibly from the Dealership. However, even if Plaintiffs presented evidence showing Malex authorized the Dealership to sell the vehicle and Defendant continued to accept payments from the Dealership, they fail to cite legal authority showing this would invalidate Defendant's title to the vehicle or allow the Dealership to effectively transfer title to Plaintiffs. Moreover, they fail to rebut Defendant's undisputed evidence it had no knowledge of the purported sale by the Dealership. Under the Full Title Doctrine, Plaintiffs have not shown they obtained title to the vehicle or extinguished Defendant's right to the vehicle which was reflected on the certificate of title. Sale by the Dealership was invalid. Defendant is ORDERED to submit a judgment for the court's signature within 5 days. Clerk to give notice.
14	Marek vs. E & S Ring Management Corp. 30-2024-01446531-CU-PO-CJC	Motion for Summary Judgment Defendants E&S Ring Management Corp. and ZMV Partnership d/b/a Mediterranean Village Costa Mesa's motion for summary judgment as to plaintiff Marzena Marek's Complaint is DENIED. Defendants' Evidentiary Objections to the Declaration of Eris Barillas is SUSTAINED as to Objection No. 5 and OVERRULED as to the remaining. Plaintiff's Request for Judicial Notice is GRANTED. There is a triable issue of material fact on the negligence and premises liability causes of action on whether the trivial defect doctrine applies. (See <i>Cadam v. Somerset Gardens Townhouse HOA</i> (2011) 200 Cal.App.4th 383, 388-389.) Plaintiff has submitted an expert declaration of Eris Barillas, CXLT, CPSI, who inspected the subject stairway and found the stairway violated section 3305 of the 1967 Uniform Building Code and ASTM F1637-21, section 7.1.2 (Plaintiff's Additional Disputed Material Facts ("AMF") No. 14-17.) It is the expert's opinion, to a reasonable degree of professional certainty, that the code-violating variations created an unsafe condition that caused and/or contributed to Plaintiff's fall. (AMF No. 20.) Plaintiff also consistently testified at the moment of the fall the staircase "felt kind of different," she could not tell

		whether the step was “wider or ... narrower or ... slippery” but the step felt “shorter” and “uneven,” that “the surface was not equal, was not straight.” (AMF No. 10, 11, 28.) There is also a triable issue of material fact as to whether Defendants had actual or constructive notice (AMF Nos. 7, 23, 25, 30, 32, 33; RJN, Ex. 1) and causation. Plaintiff’s expert, Barillas’ measurements consistent with Plaintiff’s testimony show the code-exceeding riser and tread variations at the bottom of the staircase where Plaintiff fell and opined, to a reasonable degree of professional certainty, that those variations caused and/or contributed to the fall. (AMF Nos. 13-17; 19-20) Lastly, there is a triable issue of material fact as to whether a dangerous condition was open and obvious. (See <i>Jacobs v. Coldwell Banker Residential Brokerage Co.</i> (2017) 14 Cal.App.5th 438, 447.) Plaintiff shows she was injured due to code violations in the risers, treads and handrail heights, dimensional irregularities which as Plaintiff’s expert explains may not be visually obvious and that a pedestrian cannot perceive until they disrupt the user’s gait. (AMF Nos. 13-17, 19-20, 29.) Moving Defendants to give notice.
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